

future interest had commencement, then he had such present estate in the land which might be devested, and which he might revest by his entry. As if a man makes a lease for years, in this case before the lessee enters he has an estate for years in the land which he may (e) grant. And the words of Littleton were well observed, lib. 1. c. 7. fol. 13. b. if a man makes a lease for years, and before the lessee enters the lessor dies, yet the lessee may (f) enter, because the lessee by force of the lease has a present right to have the tenements according to the form of the lease. And Lit. lib. 3. cap. 8. fol. 107. if a man leases his land for years, if the lessor releases to the lessee all his right before the lessee has entered into the land, such (g) release is void (B), because the lessee had not possession in the land at the time of the release made, but only a right to have the same land by force of the same lease: and *eodem lib.* fol. 127. if a man leases tenements for years, by force of which the lessee is seised, that is, possessed, and afterwards the lessor by his deed grants the reversion to another for life, &c. it is necessary in such case that the tenant for term of years (a) attorn (C): by which it appears, that before the lessee enters, he has not actual possession, nor (as it seems) the lessor has not such a reversion that he can grant it over by the name of the (b) reversion, but yet such lessee has more than he who has a future interest, for he may presently enter and take the profits, so that his interest, accompanied with present entry and ability to take the profits which he may transfer to another, may be devested out of him, and put to a mere right not grantable: and so the difference appears between the case at Bar and (c) *Saunders's case*, which was adjudged in 21 Eliz. for there at the time of the fine levied the lessee had not power to enter or take the profit, but only a future interest, which (if it could be devested) he had not any means possible to revest in him again (D).

[125 a] THE CASE DE LIBELLIS FAMOSIS, or of SCANDALOUS LIBELS.

Pasch. 3 Jac. 1°.

A libel is made either against a private person, or a magistrate, or public person; and in either case is punishable, although the party libelled is dead at the time of making the libel.

A libeller shall be punished either by indictment by common law, or by bill, or *ore tenus* on his confession in the Star Chamber, and may be punished by fine, imprisonment, and by pillory and loss of ears.

It is not material, whether the libel be true or false.

A libel is either *in scriptis* or *sine scriptis*.

A libel *in scriptis* is, when an epigram, rhyme, or other writing is composed or published, to the scandal or contumely of another.

The publication may be, 1. *Verbis aut cantilenis*. 2. *Traditione*.

A libel *sine scriptis* may be, 1. *Picturis*. 2. *Signis*.

If one find a libel against a private person, he may either burn it or deliver it to a

(e) Cr. Jac. 60. Cr. El. 15. 127.

(f) Lit. sect. 66. Co. Lit. 51. b.

(g) Lit. sect. 459. Hetl. 81. Co. Lit. 46. b. 270. a. Lit. 108. b. Perk. sect. 603. 22 E. 4. 37. a.

(B) This must be understood of a lease at common law, for where the lease is created by bargain and sale, under the Statute of Uses, there is no necessity of an actual entry to make the lessee capable of taking a release. *Iseham v. Morris*, Cro. Car. 110. *Barker v. Keate*, 2 Mod. 249.

(a) Co. Lit. 315. b. Lit. sect. 567. Lit. 128. b.

(c) Attornment unnecessary, 4 Ann. c. 16.

(b) Cr. Car. 110. 400. Cr. Jac. 604. Godb. 451. 10 Co. 171. b.

(c) Goldsb. 171, 172. Cr. Jac. 60, 61. Cart. 82. 2 Leon. 157. 1 Leon. 99. Raym. 149.

(D) *Vid. Henning v. Brabason*, O. Bridgm. Rep. 11. *Willis v. Shorral*, 1 Atk. 474.